

ORDER SHEET**IN THE LAHORE HIGH COURT, MULTAN BENCH MULTAN
(JUDICIAL DEPARTMENT)****Case No. Crl. Misc. No. 4035-B/2021****Mst. Sangeeta****Versus****The State and another**

Sr. No. of order/ Proceedings	Date of order/ Proceedings	Order with signatures of Judge, and that of parties or counsel, where necessary.
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13.07.2021

Mr. Javaid Shaukat, Advocate for the petitioner.
Mr. Muhammad Ali Shahab, Deputy Prosecutor General
with Abid, ASI.

Through this petition under Section 497 Cr.P.C. petitioner Mst. Sangeeta has sought post arrest bail in case FIR No. 138 dated 11.02.2021, in respect of an offence under Section 9-C of the Control of Narcotic Substances Act, 1997 (“**The Act**”) registered at Police Station, Shah Shams, Multan.

2. As per brief allegation levelled in the FIR, on 11.02.2021 at 08:20 a.m. the petitioner was apprehended by the police party in consequence of a tip-off when she was carrying *Charas* weighing 1550-grams. Hence, this FIR.

3. Arguments heard and record perused.

4. Learned counsel for the petitioner has vociferously contended that the petitioner has dishonestly been ensnared for this situation because of past hatred with the nearby police. To decorate his affirmation, has put copy of Writ Petition No. 15066 of 2020 named as Mst. Gulnaz Bibi versus CPO and others wherein Gulnaz Bibi mother of the petitioner has asked that departmental proceedings against S.H.O and Muhammad Yaqoob, SI of Police Station Shah

Shams, Multan be started against them and the supra referenced writ appeal was recorded before the enlistment of moment F.I.R.

5. Furthermore, it has been averred that petitioner's whole family has been booked into false narcotics cases due to grudge mentioned in the preceding paragraph. Learned counsel for the petitioner has produced copy of F.I.R No. 137/2021 dated 11.02.2021 under section 9-C, CNSA, 1997 registered at Police Station Shah Shams, Multan, according to which, at 08.05 a.m. Muhammad Saleem, ASI of Police Station Shah Shams Multan recovered Charas from one Mst. Gulnaz Bibi who happens to be the mother of the petitioner. According to the contents of this F.I.R, the alleged recovery of Charas was made from Mst. Gulnaz Bibi within precincts of Dera Muhammadi which is situated at a distance of two kilometers of Police Station Shah Shamas Multan. Similarly, according to the contents of the instant F.I.R, Abid Hussain, ASI of Police Station Shah Shams Multan apprehended the petitioner on 11.02.2021 at 08.20 a.m. from the same place from where the recovery was effected from her mother Mst. Gulnaz. Likewise, another F.I.R No. 139 dated 11.02.2021 under section 9-C of CNSA, 1997 was also registered at police station Shah Shams, Multan against Mst. Haleema sister of the petitioner on the same day at 08.50 a.m. Recovery of Charas has been shown to be effected from Mst. Haleeman also from the same place, i.e. Dera Muhammadi. Supra mentioned facts make the case of the petitioner one of further inquiry. Reliance is placed upon the case law titled as Mst. Asmat

Parveen vs. The State and another (PLD 2021

Lahore 105) wherein it has been held as under:-

“As far as merits of the case are concerned though it is alleged that at the time of arrest of the petitioner 2000 grams contraband charas was allegedly recovered from her, however, if the factum of lodging of F.I.R No. 292/2020 against husband of the petitioner coupled with venue of recovery, i.e. same house is juxtaposed with the facts of the instant case, this Court is persuaded to believe that possibility of manoeuvring false case implicating the petitioner in the instant case at the hands of complainant/local police cannot be ruled out. Reliance is placed on the case law reported as 2010 MLD 1908 (Ziarat Khan v. The State). The petitioner is a woman folk, who is stated to be previous non-convict and behind the bars since the date of her arrest. Moreover, investigation being complete person of the petitioner is no more required for further investigation. All these facts when evaluated on the judicial parlance persuade this Court to believe that there exist sufficient grounds to interfere into the matter to grant the relief of bail under section 51(2) of the Control of Narcotic Substance Act, 1997. ”.

6. Another important aspect of this case is that the petitioner is pregnant. A report was called from the Medical Officer Woman Jail, Multan by learned Additional Sessions Judge, Multan during the proceedings of bail application before him which was submitted on 18.05.2021, which depicts as under:-

“In compliance to Court order No. 2342-APPP dated 17.05.2021 issued by the learned court of Mr. Muhammad Ayaz, Additional District & Sessions Judge, Multan regarding medical report of under

trial prisoner Mst. Sangeeta w/o Bilal presently confined in this jail being involved in case F.I.R No. 138/2021 dated 11.02.2021 u/s 9-C/CNSA, P/s Shah Shams.

In this regard, it is submitted about aforementioned prisoner that she has gestational amenorrhea of about 7 months and is psychically and mentally fit. She is regularly checked by Consultant Gynecologist Nishtar Hospital Multan during fortnightly visits at Woman Jail, Multan. She also has one year old baby boy with her. ”

According to the report of Medical Officer Woman Jail, Multan her minor baby boy aged about one year is also detained along with her in the jail. Holy Prophet Muhammad (p.b.u.h) in the famous case of “*Ghamidiyyah*” had suspended the sentence of pregnant woman not only till delivery of the child but also postponed it till suckling period, i.e. two years obviously for the welfare of child which shows the paramount importance and significance of the right of suckling child in Islam and the unprecedented care taken of and the protection even to a child born or expected to be born by Holy Prophet Muhammad (p.b.u.h) and this golden principle of administration of justice must be strictly observed and followed in the country. A reference in this respect may be made to the cases reported as Mst. Nusrat vs. The State (1996 SCMR 973), Mst. Latifan Bibi vs. The State (2006 P.Cr.L.J. 251), Sadiq Waqas vs. The State and another (2012 P.Cr.L.J. 841), Ghulam Sakina and others vs. The State (1991 P.Cr.L.J. 1316), Mst. Nasreen vs. The State (1998 MLD 1350) and Mst. Javeria vs. The State (2017 MLD 1367).

7. The petitioner is a fragile creature and is in-advance stage of pregnancy who required proper medical care and caution, therefore, she is entitled to claim that the child to whom she would give birth will born in free atmosphere and not in prison, thus, the petitioner is also entitled to be admitted to bail on this sole ground. Wisdom is derived from the case laws reported as Mst. Yasmeen vs. The State (1989 SCMR 269), Mst. Tahira Naqvi vs. The State (2001 YLR 2173), Tahira Bibi vs. The State and another (2012 YLR 2607) and Mst. Parveen Bibi vs. The State (2013 YLR 913).

8. Insofar as the contention of learned Deputy Prosecutor General that report under section 173 Cr.P.C has been submitted and trial of the petitioner is going to be commenced, suffice it observe that mere commencement of trial is no ground for refusal of bail at any stage if accused has made out a case of further inquiry. I fortified my view from the following cases titled as Syed Khalid Hussain Shah vs. The State and another (2014 SCMR 12) and Nisar Ahmed vs. The State and others” (2014 SCMR 27).

9. The petitioner has no antecedents or credentials of criminal activity and no more required by the police, hence, incarceration of the petitioner would not serve any useful purpose to the prosecution.

10. For what has been discussed above, this petition is **accepted** and the petitioner is allowed post-arrest bail subject to her furnishing bail bonds in the sum of Rs. 200,000/- (Rupees two hundred thousand only) with one surety in the like amount to the satisfaction of the learned trial Court.

11. It is, however, clarified that observations made herein are just tentative in nature and strictly confined to the disposal of this bail petition.

(Muhammad Tariq Nadeem)
Judge

Khurram*

Approved for reporting

Judge